

Report on Business Monitor

JM0160 Intellectual Property and Privacy, Assignment #1: Privacy & Data Protection Law

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i Working draft

Submission: a **PDF** upload to Canvas, due **13 Nov 2026, 23:59 CET**. Late work is not accepted.

Render with `quarto render Report-Data-Protection.qmd`.

Limits: max **3000 words excluding footnotes**, footnotes only (no endnotes), and footnotes must not carry text that belongs in the body.

Citing: every legal source goes in a footnote, citing the bibliography inside it, for example [^][@GDPR, art 6(1)(f)]. Add each new source to `references.bib`.

Ownership: see `../Task division.md`. Person A: Section 1. Person B: Section 2. Person C: Section 3. Section 4: each writes their own advice share, then the conclusion is settled together. Remove this callout before the final render.

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Total word count (Sections 1 to 4, excluding footnotes): []

1 Introduction and Description

1.1 Learning Benchmarking Tool

Business Monitor developed the Learning Benchmarking Tool (LBT) to support organisations in evaluating and comparing the effectiveness of their learning programmes (Business Monitor Project Team 2026, 4). The tool applies the Kirkpatrick framework to measure learning effectiveness across four levels: Reaction (L1), Learning (L2), Behaviour (L3), and Results (L4) (Business Monitor Project Team 2026, 4, 11–12).

The original LBT was developed as a proof of concept using a fully synthetic organisational dataset (Business Monitor Project Team 2026, 4). Its data structures include both programme-level and participant-level data and were designed to be compatible with future real organisational data (Business Monitor Project Team 2026, 10). The current MVP therefore demonstrates the analytical logic without processing real participant data. The original project identifies piloting with real organisational data as a next step towards an operational benchmarking service (Business Monitor Project Team 2026, 27–29).

For the purpose of this data protection assessment, an operational scenario is considered in which Business Monitor administers participant surveys on behalf of participating organisations.¹ Business Monitor therefore initially processes the participant information required to invite participants and administer the surveys. After collection, participant-level survey and learning data are pseudonymised for analytical processing.

These data are subsequently used to calculate programme-level indicators across the four Kirkpatrick levels. The original MVP already aggregates programme- and participant-level data into comparable KPIs and benchmarking outputs (Business Monitor Project Team 2026, 11–13). For the operational scenario assessed in this report, the analytical functionality is extended to programme-level predictive models intended to predict learning outcomes and KPIs rather than the performance, behaviour, or capabilities of individual participants.²

The resulting programme-level data can contribute to cross-organisational benchmarking. This is consistent with the LBT value proposition, in which Business Monitor acts as a neutral hub that aggregates learning evaluation data to enable comparisons across participating organisations (Business Monitor Project Team 2026, 6–7). Benchmark results presented to customers are intended to be aggregated and anonymised.

¹This is an operational assumption adopted for the present data protection assessment. The original LBT report assumes that participating organisations submit aggregated or pseudonymised data and does not specify that Business Monitor itself administers participant surveys; see Business Monitor Project Team (2026), p. 29.

²This programme-level predictive functionality is an assumption for the intended operational LBT. In the original MVP, the Random Forest and Gradient Boosting models are described as explanatory rather than predictive and are used to identify the importance of design and contextual variables in explaining KPI variation; see Business Monitor Project Team (2026), p. 12.

1.2 Personal Data and Data Subjects

For this assessment, the processing can be considered in three data layers. First, survey administration involves directly identifiable personal data, such as participant contact details required to administer the survey. Second, the analytical layer contains pseudonymised participant-level data, including survey responses, learning measurements, and contextual information relevant to the calculation of the programme-level indicators. The original LBT data model already distinguishes between programme-level and participant-level data and includes participant responses, behavioural indicators, and contextual information ([Business Monitor Project Team 2026, 10, 32–33](#)).

Article 4(5) GDPR defines pseudonymisation as processing personal data in such a manner that the data can no longer be attributed to a specific data subject without the use of additional information, provided that such additional information is kept separately and subject to appropriate technical and organisational measures ([European Parliament and Council of the European Union 2016, art. 4\(5\)](#)). Pseudonymisation does not in itself remove these data from the scope of the GDPR. Recital 26 states that pseudonymised personal data that could be attributed to a natural person through the use of additional information should be considered information relating to an identifiable natural person ([European Parliament and Council of the European Union 2016, recital 26](#)).

Third, programme-level indicators and cross-organisational benchmark results are aggregated, with the intention that the final benchmark outputs no longer permit individual participants to be identified. This follows the intended deployment direction described in the original LBT report, in which outputs should be reported at a level where re-identification is not reasonably possible ([Business Monitor Project Team 2026, 29](#)). The principal data subjects in the operational scenario are the employees or other individuals participating in the learning programmes.

The standard LBT is not designed to collect special categories of personal data within the meaning of Article 9 GDPR ([European Parliament and Council of the European Union 2016, art. 9\(1\)](#)). Nevertheless, the survey process may create a risk that such information is provided unintentionally, for example through free-text responses. Whether such fields are necessary and how this risk can be minimised therefore requires consideration when applying the data protection principles.

1.3 GDPR Actors

The allocation of GDPR roles depends on the particular processing operation. Article 4(7) GDPR defines a controller as the natural or legal person or other body that determines the purposes and means of processing personal data. Article 4(8) defines a processor as an entity that processes personal data on behalf of the controller ([European Parliament and Council of the European Union 2016, art. 4\(7\)–\(8\)](#)).

In the operational LBT scenario, a participating organisation determines why the learning effectiveness of its employees is evaluated and may therefore qualify as controller for that processing purpose. Business Monitor may act as processor where it administers surveys and performs agreed analytical activities on the organisation's behalf.

Business Monitor's role may, however, differ when data from multiple participating organisations are subsequently used for the cross-organisational benchmarking service. The original business model positions Business Monitor as a neutral hub for cross-organisational data collaboration and benchmarking ([Business Monitor Project Team 2026, 6–7](#)). If Business Monitor independently determines the purpose and essential means of this subsequent processing, it may qualify as controller for that separate processing activity. The relevant GDPR roles must therefore be assessed per processing operation rather than assigning Business Monitor a single role for the LBT as a whole.

The following sections assess these processing activities against the GDPR data protection principles, examine the applicable lawful bases, and develop recommendations for the compliant operation of the LBT.

2 How Are the Data Processed?

2.1 Purpose of the processing

The LBT involves five processing operations, each with its own purpose: survey administration; participant-level learning analysis; programme-level calculation of the Kirkpatrick L1 to L4 indicators; programme-level predictive analytics; and cross-organisational benchmarking.³ Under the working hypothesis of Section 1, the first four serve the participating organisation's evaluation of its own programmes, with Business Monitor acting on its behalf. Benchmarking serves a different aim: Business Monitor's service to multiple organisations.

2.2 Application of the data protection principles

2.2.1 Lawfulness, fairness and transparency

Lawfulness is assessed in Section 3. Fairness and transparency are tested here, because the employment relationship leaves participants little real choice about taking part.⁴ Processing is unfair if participants cannot foresee that their answers also feed a commercial benchmark. If Business Monitor obtains contact details from the employer rather than from the participant, it must inform participants at the latest at the first contact, the survey invitation;⁵ information on the answers collected from participants themselves falls under Article 13.⁶ The information must be concise, intelligible and in plain language,⁷ name each controller and state each purpose, including benchmarking.⁸ A further purpose must be notified before that processing starts.⁹ Without such notice, the reasonable expectations on which the Article 6(4) assessment below depends cannot be met.

2.2.2 Purpose limitation

Article 5(1)(b) GDPR requires specified, explicit and legitimate purposes and prohibits further processing that is incompatible with them.¹⁰ Benchmarking is the critical transition: participants provide data for their employer's evaluation, and the data later feed a product used by other organisations.

Compatibility depends on the factors in Article 6(4).¹¹ The link is strong, since benchmarking uses the same indicators for the same evaluative aim. The context is weaker: employees expect their employer to evaluate a programme, not that their answers inform a commercial comparison between companies, and the employment relationship limits their real choice.

Article 5(1)(b) offers a second route: further processing for statistical purposes is not considered incompatible, in accordance with Article 89(1). Under Recital 162 the result must be aggregate data not used in support of decisions regarding a particular natural person,¹² which fits the programme-level design of the LBT. This route supports the Article 6(4) assessment but does not replace it. Benchmarking is therefore compatible only if participants are told in advance, outputs are demonstrably aggregate, and no output is used for decisions about individuals.

³Operations two and three are closely linked and may be merged after review. They are kept separate here because only the former processes personal data at participant level.

⁴European Parliament and Council of the European Union (2016), art. 5(1)(a) and recital 39.

⁵European Parliament and Council of the European Union (2016), art. 14(1) and (3)(b).

⁶European Parliament and Council of the European Union (2016), art. 13(1).

⁷European Parliament and Council of the European Union (2016), art. 12(1).

⁸European Parliament and Council of the European Union (2016), art. 13(1)(a) and (c), art. 14(1)(a) and (c).

⁹European Parliament and Council of the European Union (2016), art. 13(3).

¹⁰European Parliament and Council of the European Union (2016), art. 5(1)(b).

¹¹European Parliament and Council of the European Union (2016), art. 6(4).

¹²European Parliament and Council of the European Union (2016), art. 5(1)(b), art. 89(1) and recital 162.

2.2.3 Data minimisation

Article 5(1)(c) limits data to what is necessary for each purpose.¹³ Directly identifying data are needed only for survey administration; analysis needs the pseudonymous identifier and the measured variables. The original data model also holds participant-level variables such as location, a manager-support rating and a promotion flag.¹⁴ Each must be shown to be necessary; the promotion flag in particular records an employment outcome, whereas the indicator needs only a programme-level count. Free-text fields should be avoided, as they invite unnecessary or special-category data.

2.2.4 Accuracy

Article 5(1)(d) requires data to be accurate and, where necessary, up to date.¹⁵ Most LBT indicators rest on self-reported Likert scores, which the original report itself describes as subject to response bias,¹⁶ and follow-up measurements link responses over time through the pseudonymous identifier.

2.2.5 Storage limitation

Article 5(1)(e) allows identifiable data to be kept only as long as necessary.¹⁷ The three data layers need different periods. Identification data and the mapping are necessary only until the last follow-up measurement of the survey cycle and must then be deleted, as the case definition provides. Deleting the mapping can make the analytical data anonymous, but only if neither Business Monitor nor any other person could still identify participants by means reasonably likely to be used.¹⁸ That is doubtful where the participating organisation knows who attended a programme, and in small cohorts, such as the original design's minimum of eight participants, where combinations of contextual variables can single people out.¹⁹ Only aggregated outputs with a sufficient minimum cohort size can reliably fall outside the GDPR.

2.2.6 Integrity and confidentiality

Article 5(1)(f) requires appropriate security.²⁰ Business Monitor would hold identifiable contact data and the key that reverses pseudonymisation. Stored next to the analytical data, that key would make pseudonymisation largely pointless, because Article 4(5) requires additional information to be kept separately and protected. Access should be limited to the staff who administer the survey.

2.2.7 Accountability

Article 5(2) makes the controller responsible for demonstrating compliance:²¹ the participating organisation, and Business Monitor for benchmarking if it is controller there. The agreements and records proposed in Section 4 should allocate these responsibilities.

3 On Which Legal Basis?

800 to 1000 words. Owner: Person C.

3.1 The processing ground relied on

Which Article 6 ground applies, and Article 9 if Section 1 found special categories.

¹³European Parliament and Council of the European Union (2016), art. 5(1)(c).

¹⁴Business Monitor Project Team (2026), p. 33.

¹⁵European Parliament and Council of the European Union (2016), art. 5(1)(d).

¹⁶Business Monitor Project Team (2026), p. 18.

¹⁷European Parliament and Council of the European Union (2016), art. 5(1)(e).

¹⁸European Parliament and Council of the European Union (2016), recital 26.

¹⁹Business Monitor Project Team (2026), pp. 13-14.

²⁰European Parliament and Council of the European Union (2016), art. 5(1)(f) and art. 32(1).

²¹European Parliament and Council of the European Union (2016), art. 5(2).

3.2 Application of its criteria

Each criterion of that ground applied to the project facts.

3.3 Problems with relying on this ground

Where the ground is weak, and which alternative ground could apply.

4 Advice

500 to 800 words. Each person writes their own share; the conclusion is written together.

4.1 Alternatives to personal data

Person A. Anonymisation, pseudonymisation, or using non-personal data instead.

4.2 Technical and organisational measures

The risks identified in Section 2 lead to five measures.

Specify the benchmarking purpose. The invitation should state the benchmarking purpose separately, as set out in Section 2.2.1.

Tie retention to purpose. A written schedule should set a period for each data layer. Identification data and the mapping are deleted after the last follow-up wave and the deletion is logged; analytical data have a defined maximum period and periodic review.

Separate and protect identity data. Identity data and the mapping are stored apart from the analytical dataset, encrypted, with the key held separately and access restricted by role and logged.²²

Prevent re-identification. A minimum cohort size applies to every benchmark output, small groups are suppressed, and the eight-participant threshold of the original design is tested for sufficiency.²³

Document the processing. Data protection by design and by default,²⁴ a processor agreement between each organisation and Business Monitor,²⁵ records of processing,²⁶ and a documented DPIA screening before operation,²⁷ because employee data from several organisations are combined.

4.3 Conclusion on compliance

Person C, settled jointly. Is the project GDPR compliant, and what is the way forward.

Technology Statement

During the preparation of this work, we used [NAME TOOL / SERVICE / VERSION OF AI TOOL] in order to [REASON]. The following parts of the assignment were affected/generated by AI tool usage: [SECTIONS]. After using this tool/service, [NAME STUDENT(S)] evaluated the validity of the tool's outputs, including the sources that generative AI tools have used, and edited the content as needed. As a consequence, [NAME STUDENT(S)] take(s) full responsibility for the content of their work.

²²European Parliament and Council of the European Union (2016), art. 32(1)(a)-(b).

²³Business Monitor Project Team (2026), pp. 13-14.

²⁴European Parliament and Council of the European Union (2016), art. 25(1)-(2).

²⁵European Parliament and Council of the European Union (2016), art. 28(3).

²⁶European Parliament and Council of the European Union (2016), art. 30.

²⁷European Parliament and Council of the European Union (2016), art. 35.

References

- Business Monitor Project Team. 2026. “Learning Benchmarking Tool: Final Report.” Jheronimus Academy of Data Science.
- European Parliament and Council of the European Union. 2016. “Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the Protection of Natural Persons with Regard to the Processing of Personal Data and on the Free Movement of Such Data, and Repealing Directive 95/46/EC (General Data Protection Regulation).” Official Journal of the European Union, L 119, 4 May 2016. <https://eur-lex.europa.eu/eli/reg/2016/679/oj>.